

Federal Constitution

NOTES

Art. 30

Clause (1)

- a. Act 10/1960, paragraph 2(a), in force from 01-12-1960, substituted the words “Federal Government” for the words “registration authority”.
 - b. *See* Second Schedule, Part III, paragraph 10(1)(c).
1. Act 26/1963, subsection 24(3), in force from 16-09-1963, added Clauses (3) and (4) and amended Clause (2) by substituting the words “Clause (1)” for the words “this Article”.
 2. Act 59/1966, section 2, in force from 09-08-1965, deleted the words “; and this Clause shall apply to questions arising under the Constitution of the State of Singapore as well as to questions arising under this Constitution” which appeared at the end of Clause (3) and repealed Clause (4) which read as follows:

“(4) Any certificate issued under Clause (1) may state that the person to whom it relates is or is not a Singapore citizen, and Clause (2) shall apply accordingly; and if the Constitution of the State of Singapore provides for the government of the State to issue certificates of Singapore citizenship, Clause (2) shall apply in relation to a certificate issued under that provision as it applies to a certificate issued under Clause (1).”.
 3. *See* Second Schedule, Part III, paragraph 16(2)(c).

Art. 30A

This Article was inserted by Act 26/1963, section 31, in force from 16-09-1963, and repealed by Act 59/1966, section 2, in force from 09-08-1965. It read as follows:

“30A. (1) Notwithstanding anything in Article 47, a Singapore citizen is not qualified to be an elected member of either House of Parliament except as a member for or from Singapore; and a citizen who is not a Singapore citizen is not qualified to be a member of either House for or from Singapore.

(2) A Singapore citizen shall not be qualified to be an elected member of the Legislative Assembly of any State other than Singapore, and a citizen who is not a Singapore citizen shall not be qualified to be a member of the Legislative Assembly of Singapore.

(3) Notwithstanding anything in Article 119, a citizen is not entitled to vote in a constituency in any election to the House of Representatives or a Legislative Assembly if—

- (a) the constituency is not in the State of Singapore and he is on the qualifying date (as defined in that Article) a Singapore citizen; or
- (b) if the constituency is in the State of Singapore and he is not on that date a Singapore citizen.

(4) Any election of a person to either House of Parliament or to a Legislative Assembly contrary to Clause (1) or (2) shall be void; and if a member of either House or of a Legislative Assembly (not being an appointed member) changes his status as being or not being a Singapore citizen, his seat shall become vacant.”.

Art. 30B

This Article was inserted by Act 26/1963, section 32, in force from 16-09-1963, and repealed by Act 59/1966, section 2, in force from 09-08-1965. It read as follows:

“30B. (1) Where under this Constitution a person becomes a Singapore citizen by naturalization, or is enrolled as a citizen who is not a Singapore citizen, or being a Singapore citizen renounces or is deprived of his citizenship, or where a certificate of citizenship or other certificate is issued under Article 30 in relation to citizenship of Singapore, the Federal Government shall notify the government of Singapore of that fact.

PART IV

THE FEDERATION

*Chapter 1—The Supreme Head***Supreme Head of the Federation, and his Consort**

32. (1) There shall be a Supreme Head of the Federation, to be called the Yang di-Pertuan Agong, who shall take precedence over all persons in the Federation and shall not be liable to any proceedings whatsoever in any court except in the Special Court established under Part XV.

(2) The Consort of the Yang di-Pertuan Agong (to be called the Raja Permaisuri Agong) shall take precedence next after the Yang di-Pertuan Agong over all other persons in the Federation.

(3) The Yang di-Pertuan Agong shall be elected by the Conference of Rulers for a term of five years, but may at any time resign his office by writing under his hand addressed to the Conference of Rulers or be removed from office by the Conference of Rulers, and shall cease to hold office on ceasing to be a Ruler.

(4) The provisions of Parts I and III of the Third Schedule shall apply to the election and removal of the Yang di-Pertuan Agong.

Deputy Supreme Head of the Federation

33. (1) There shall be a Deputy Supreme Head of the Federation (to be called the Timbalan Yang di-Pertuan Agong) who shall exercise the functions and have the privileges of the Yang di-Pertuan Agong during any vacancy in the office of the Yang di-Pertuan Agong and during any period during which the Yang di-Pertuan Agong is unable to exercise the functions of his office owing to illness, absence from the Federation or for any other cause, but the Timbalan Yang di-Pertuan Agong shall not exercise those functions during any inability or absence of the Yang di-Pertuan Agong which is expected to be less than fifteen days, unless the Timbalan Yang di-Pertuan Agong is satisfied that it is necessary or expedient to exercise such functions.

(2) The Timbalan Yang di-Pertuan Agong shall be elected by the Conference of Rulers for a term of five years, or if elected

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Art. 30B—(*cont.*)

(2) Where under the Constitution of the State of Singapore a person becomes a Singapore citizen by registration, or is enrolled as a Singapore citizen, or is deprived of his citizenship, or where a certificate of citizenship is issued under that Constitution, the government of Singapore shall notify the Federal Government of that fact.”.

Art. 31

Amended by Act 26/1963, paragraph 24(1)(b), in force from 16-09-1963, by inserting the words “Part III of”.

Art. 32

Clause (1)

The words “except in the Special Court established under Part XV” were inserted by Act A848, section 2, in force from 30-03-1993.

Clause (2)

The words “to be called” substituted for the words “who shall be known as” by Act A354, section 9, in force from 27-08-1976.

Art. 33

Clause (1)

The words “to be called” substituted for the words “to be known as”, and the words “but the Timbalan Yang di-Pertuan Agong shall not exercise those functions during any inability or absence of the Yang di-Pertuan Agong which is expected to be less than fifteen days, unless the Timbalan Yang di-Pertuan Agong is satisfied that it is necessary or expedient to exercise such functions” substituted for the words “but the Deputy Supreme Head shall not exercise those functions during any absence of the Yang di-Pertuan Agong which is expected to be less than fifteen days” by Act A354, section 10, in force from 27-08-1976.

Clause (2)

The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head” by Act A354, section 11, in force from 27-08-1976.

during the term for which the Yang di-Pertuan Agong was elected, for the remainder of that term, but may at any time resign his office by writing under his hand addressed to the Conference of Rulers and shall cease to hold office on ceasing to be a Ruler.

(3) If during the term for which the Timbalan Yang di-Pertuan Agong was elected a vacancy occurs in the office of the Yang di-Pertuan Agong his term shall expire on the cessation of the vacancy.

(4) The provisions of Part II of the Third Schedule shall apply to the election of the Timbalan Yang di-Pertuan Agong.

(5) Parliament may by law* provide for the exercise by a Ruler of the functions of the Yang di-Pertuan Agong in cases where those functions would under Clause (1) fall to be exercised by the Timbalan Yang di-Pertuan Agong but cannot be so exercised owing to a vacancy in the office of the Timbalan Yang di-Pertuan Agong or to his illness, absence from the Federation or to any other cause; but such a law shall not be passed without the consent of the Conference of Rulers.

Yang di-Pertuan Agong shall cease to exercise the functions of the Yang di-Pertuan Agong if charged with an offence

33A. (1) Where the Yang di-Pertuan Agong is charged with an offence under any law in the Special Court established under Part XV he shall cease to exercise the functions of the Yang di-Pertuan Agong.

(2) The period during which the Yang di-Pertuan Agong ceases, under Clause (1), to exercise the functions of the Yang di-Pertuan Agong shall be deemed to be part of the term of office of the Yang di-Pertuan Agong provided for in Clause (3) of Article 32.

Disabilities of Yang di-Pertuan Agong, etc.

34. (1) The Yang di-Pertuan Agong shall not exercise his functions as Ruler of his State except those of Head of the religion of Islam.

(2) The Yang di-Pertuan Agong shall not hold any appointment carrying any remuneration.

*See Yang di-Pertuan Agong (Exercise of Functions) Act 1957 [Act 373].

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Art. 33—(cont.)

Clause (3)

The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head of the Federation” by Act A354, section 11, in force from 27-08-1976.

Clause (5)

- a. *See* Art. 37(4).
- b. Yang di-Pertuan Agong (Exercise of Functions) Act 1957 [*Act 373*].

Art. 33A

This Article was added by Act A848, section 2A, in force from 30-03-1993.

Art. 34

Clause (1)

The words “religion of Islam” substituted for the words “Muslim religion” by Act A354, section 45, in force from 27-08-1976.

Clause (2)

The words “appointment carrying any remuneration” substituted for the words “office of profit” by Act A354, paragraph 12(a), in force from 27-08-1976.

(3) The Yang di-Pertuan Agong shall not actively engage in any commercial enterprise.

(4) The Yang di-Pertuan Agong shall not receive any emoluments of any kind whatever payable or accruing to him as the Ruler of his State under the provisions of the Constitution of that State or of any State law.

(5) The Yang di-Pertuan Agong shall not, without the consent of the Conference of Rulers, be absent from the Federation for more than fifteen days, except on a State visit to another country.

(6) Clauses (2) and (3) shall also apply to the Raja Permaisuri Agong.

(7) Where the Timbalan Yang di-Pertuan Agong or any other person authorized by law exercises the functions of the Yang di-Pertuan Agong for a period exceeding fifteen days Clauses (1) to (5) shall apply to him during that period as they apply to the Yang di-Pertuan Agong.

(8) Nothing in Clause (1) shall prevent the Yang di-Pertuan Agong exercising as Ruler of his State any power vested in him either alone or in conjunction with any other authority—

(a) to amend the Constitution of the State; or

(b) to appoint a Regent or member of a Council of Regency in the place of any Regent or member, as the case may be, who has died or has become incapable for any reason of performing the duties of the office of Regent or member of the Council of Regency respectively.

Civil List of the Yang di-Pertuan Agong and his Consort and remuneration of the Timbalan Yang di-Pertuan Agong

35. (1) Parliament shall by law* provide a Civil List of the Yang di-Pertuan Agong which shall include provision for an annuity to be paid to the Raja Permaisuri Agong, and shall be charged on the Consolidated Fund and shall not be diminished during the Yang di-Pertuan Agong's continuance in office.

(2) Parliament shall by law** make provision for the remuneration of the Timbalan Yang di-Pertuan Agong or any other

*See Civil List Act 1982 [Act 269].

**See Timbalan Yang di-Pertuan Agong (Remuneration) Act 1958 [Act 374].

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Art. 34—(cont.)

Clause (6)

The present Clause was substituted by Act A354, paragraph 12(b), in force from 27-08-1976 and replaced the earlier Clause which read as follows:

“(6) The Raja Permaisuri Agong shall not hold any office under the Federation or any State.”.

Clause (7)

The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head of the Federation” by Act A354, section 11, in force from 27-08-1976.

Clause (8)

This Clause was inserted by Act 10/1960, subsection 3(1), in force from 11-09-1960. It replaces the earlier Clause added by F.M. Ordinance 42/1958, section 2, in force from 05-12-1958, which read as follows:

“(8) Nothing in Clause (1) shall prevent the Yang di-Pertuan Agong exercising as Ruler of his State any power vested in him either alone or in conjunction with any other authority—

- (a) to amend the Constitution of the State for the purpose of—
 - (i) incorporating therein all or any of the essential provisions referred to in Clause (4) of Article 71, or provisions substantially to the same effect;
 - (ii) removing from the Constitution of the State any provision inconsistent with such essential provisions; or
 - (iii) bringing about a satisfactory transition to the constitutional arrangements contemplated by such essential provisions; or
- (b) to appoint a Regent or member of a Council of Regency in the place of any Regent or member, as the case may be, who has died or has become incapable for any reasons of performing the duties of the office of Regent or member of the Council of Regency respectively.”.

Art. 35

Clause (1)

The words “which shall include provision for an annuity to be paid to the Raja Permaisuri Agong, and” substituted for the words “and a Civil List of the Raja Permaisuri Agong and those Civil Lists” by Act 14/1962, section 12, in force from 21-06-1962.

person authorized by law to exercise the functions of the Yang di-Pertuan Agong during any period during which he exercises those functions and the remuneration for which provision is made in pursuance of this Clause shall be charged on the Consolidated Fund.

Public Seal

36. The Yang di-Pertuan Agong shall keep and use the Public Seal* of the Federation.

Oath of office of Yang di-Pertuan Agong

37. (1) The Yang di-Pertuan Agong shall before exercising his functions take and subscribe before the Conference of Rulers and in the presence of the Chief Justice of the Federal Court (or in his absence the next senior judge of the Federal Court available) the oath of office set out in Part I of the Fourth Schedule; and the oath shall be attested by two persons appointed for the purpose by the Conference of Rulers.

(2) The Timbalan Yang di-Pertuan Agong shall before exercising his functions, other than the functions exercisable for the purpose of convening the Conference of Rulers, take and subscribe before the Conference of Rulers and in the presence of the Chief Justice of the Federal Court (or in his absence the next senior judge of the Federal Court available) the oath of office set out in Part II of the Fourth Schedule.

(3) The said oaths, translated into English, are set out in Part III of the Fourth Schedule.

(4) Any law made under Clause (5) of Article 33 shall make provision corresponding (with the necessary modifications) to Clause (2).

Chapter 2—The Conference of Rulers

Conference of Rulers

38. (1) There shall be a Majlis Raja-Raja (Conference of Rulers), which shall be constituted in accordance with the Fifth Schedule.

*See F.M.G.N. 3625/1952.

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Art. 35—(cont.)

Clause (2)

- a. The words “and the remuneration for which provision is made in pursuance of this Clause shall be charged on the Consolidated Fund” were added by Act 19/1964, subsection 4(1), in force from 01-01-1965.
- b. The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head” and “Deputy Supreme Head of the Federation” by Act A354, section 11, in force from 27-08-1976.

Art. 37

1. The words “Lord President of the Federal Court” and the words “Federal Court” which appear in Clauses (1) and (2) substituted for the words “Chief Justice of the Federation” and “Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.
2. Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.
3. The words “Federal” and “Chief Justice of the Federal Court” substituted for the words “Supreme” and “Lord President of the Supreme Court” by Act A885, section 3, in force from 24-06-1994.

Clause (2)

The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head of the Federation” by Act A354, section 11, in force from 27-08-1976.

(2) The Conference of Rulers shall exercise its functions of—

- (a) electing, in accordance with the provisions of the Third Schedule, the Yang di-Pertuan Agong and Timbalan Yang di-Pertuan Agong;
- (b) agreeing or disagreeing to the extension of any religious acts, observances or ceremonies to the Federation as a whole;
- (c) consenting or withholding consent to any law and making or giving advice on any appointment which under this Constitution requires the consent of the Conference or is to be made by or after consultation with the Conference;
- (d) appointing members of the Special Court under Clause (1) of Article 182;
- (e) granting pardons, reprieves and respites, or of remitting, suspending or commuting sentences, under Clause (12) of Article 42,

and may deliberate on questions of national policy (for example changes in immigration policy) and any other matter that it thinks fit.

(3) When the Conference deliberates on matters of national policy the Yang di-Pertuan Agong shall be accompanied by the Prime Minister, and the other Rulers and the Yang di-Pertua-Yang di-Pertua Negeri by their Menteri-Menteri Besar or Chief Ministers; and the deliberations shall be among the functions exercised, by the Yang di-Pertuan Agong in accordance with the advice of the Cabinet, and by the other Rulers and the Yang di-Pertua-Yang di-Pertua Negeri in accordance with the advice of their Executive Councils.

(4) No law directly affecting the privileges, position, honours or dignities of the Rulers shall be passed without the consent of the Conference of Rulers.

(5) The Conference of Rulers shall be consulted before any change in policy affecting administrative action under Article 153 is made.

(6) The members of the Conference of Rulers may act in their discretion in any proceedings relating to the following functions, that is to say: